

§ 360.2. Petition of violation. 1. If at any time during the period of an order of probation or conditional discharge the probation service has reasonable cause to believe that the respondent has violated a condition thereof, it may file a petition of violation.

2. The petition must be verified and subscribed by the probation service or the appropriate presentment agency. Such petition must stipulate the condition or conditions of the order violated and a reasonable description of the time, place and manner in which the violation occurred. Non-hearsay allegations of the factual part of the petition or of any supporting depositions must establish, if true, every violation charged.

3. The court must promptly take reasonable and appropriate action to cause the respondent to appear before it for the purpose of enabling the court to make a determination with respect to the alleged violation. Such action may include the issuance of a summons under section 312.1 or the issuance of a warrant under section 312.2.

4. If a petition is filed under subdivision one, the period of probation as prescribed by section 353.2 or conditional discharge as prescribed by section 353.1 shall be interrupted as of the date of the filing of the petition. Such interruption shall continue until a final determination as to the petition has been made by the court pursuant to a hearing held in accordance with section 360.3 or until such time as the respondent reaches the maximum age of acceptance into an office of children and family services facility.

5. If the court determines that there was no violation of probation or conditional discharge by the respondent, the period of interruption shall be credited to the period of probation or conditional discharge, as applicable.